

11.	<i>HDO 14, LLC vs. DiVita Builders, Inc.</i> 2025-01459746	Before the court is the motion to deem this action complex filed by defendant and cross-complainant DiVita Builders, Inc. (DiVita). As more fully set forth below, the motion is DENIED. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a “‘complex case’ is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.” Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include “whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage
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		claims arising out of any of the claims listed in (c)(1) through (c)(6)." "With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case." (Cal. Rules Ct., rule 3.403.) Neither the parties' stipulation nor the lack of any opposition to a motion to deem a case complex justifies granting such a motion. Further, not all cases alleging defects in construction are automatically deemed complex. As with motions to seal documents, the court must independently review the matter and determine whether a case meets the standards of rule 3.400. DiVita suggests this case should be deemed complex because it is a construction defect case and such cases are provisionally deemed complex. More accurately, construction defect claims involving many parties or structures are provisionally complex. This case, however, arises from construction of a single-family residence; it does not involve many structures. Plaintiff HDO 14, LLC (HDO) is the owner of the property located at 5 Coral Ridge, Newport Coast, California. HDO has filed suit against Antigua Investments, LLC (developer) and DiVita (Antigua's general contractor). In constructing the house, DiVita hired 15 subcontractors who each executed indemnity agreements. DiVita has now filed a cross complaint naming the 15 subcontractors. Divita points to the addition of these subcontractors via cross-complaint, and the additional indemnity cross-complaints that will ensue as satisfying the many parties requirement. However, other than this case involving a construction defect and multiple parties, there is nothing "complex" about it. DiVita provides makes vague and conclusory statements that the litigation will concern "condition of the property, the timing and nature of alleged defects, responsibility among potentially numerous actors, and the effect of successive property transfers on ownership, title, standing, damages, and related defenses." (Gruetter Decl. ¶2.) This is not unusual nor indictive of a need for specialized supervision in the complex department. DiVita also argues the litigation issues will include "ownership and title-related questions, causation, scope of repair, allocation of responsibility, apportionment,
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		indemnity, contribution, expert analysis, and procedural coordination of discovery and motion practice among many separately represented parties.” (Gruetter Decl. ¶4.) The Code of Civil Procedure provides an extensive framework for conducting discovery, filing pleadings, appointing referees, etc. These are the types of issues that the judges of this court’s unlimited civil panel are experienced in handling. It is not uncommon for them to hear cases with many witnesses and voluminous documents. They frequently address the best way to present a case, including bifurcating or severing multiple issues and designating the sequencing of issues. They have the ability to schedule multiple conferences in advance of a trial date for issue resolution and planning purposes. Further, there is no evidence the parties have been unable to serve discovery or issue subpoenas such that specialized case management is necessary. In fact, there are no pending discovery motions. The fact that DiVita has named its 15 subcontractors in a cross-complaint does not compel a finding that the case is “complex.” To the contrary, the court is charged with the duty to consider multiple factors in making such a determination. (See, Rule 3.400(b).) When the totality of the circumstances presented by DiVita are considered, the court concludes this case does not meet the standards of rule 3.400 for complex case designation. Accordingly, the motion is DENIED. DiVita’s counsel is ordered to give notice of this ruling.
12.	Young vs. Byars 2017-00924659	Before the court is the latest motion for attorney fees filed by judgment assignee Collect Co. (Assignee) seeking \$19,819.09 in attorney fees and costs from judgment creditors/assignors William Young and Jennifer Young (Assignors). As more fully set forth below, the motion is GRANTED. Assignors succeeded in obtaining a default judgment in this case against defendants. They then signed an agreement (Agreement) assigning their rights to the judgment to Assignee. (Ammar Decl. ¶ 4, Ex. A; ROA 156.) After Assignee began efforts to collect on the judgment, Assignors began a lengthy series of motions, applications, and lawsuits challenging the validity of the Agreement and seeking to prevent Assignee from collecting on the judgment. The validity of the Agreement and Assignee’s rights, however, have been determined and upheld by Judge Griffin of this court and affirmed by the Court of